

Amendment No. 1 to SB1239

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1239*

House Bill No. 1357

by deleting all language after the enacting clause and substituting:

SECTION 1. This act is known and may be cited as the "End Childhood Hunger Act."

SECTION 2. Tennessee Code Annotated, Title 37 is amended by adding the following language as a new chapter:

(a) There is created the Tennessee task force to end childhood hunger, hereinafter referred to in this section as the "task force."

(b) The purpose of the task force is to develop an action plan for ending childhood hunger. The task force shall recommend a strategic action plan to guide the administration and general assembly on how to:

(1) Address the challenges of affordability and accessibility of high quality nutrition in this state;

(2) More effectively use public resources to address those challenges, including, but not limited to, the temporary assistance for needy families (TANF) program, the supplemental nutrition assistance program (SNAP), and the summer food service program;

(3) Build partnerships between government and the nonprofit sector, through which nonprofits are motivated to create and participate in strategies that address the hunger needs of children;

(4) Streamline coordination between the department of human services, the department of education, the department of health, and the department of

children's services in developing solutions to the state's childhood hunger challenges; and

(5) Address administrative challenges with electronic benefit transfer (EBT) cards, including, but not limited to, theft and fraud.

(c) The task force is composed of fourteen (14) members, which include:

(1) The commissioner of human services, or the commissioner's designee;

(2) The commissioner of labor and workforce development, or the commissioner's designee;

(3) The commissioner of education, or the commissioner's designee;

(4) The commissioner of health, or the commissioner's designee;

(5) The commissioner of children's services, or the commissioner's designee;

(6) The executive director of the Tennessee commission on children and youth, or the executive director's designee;

(7) One (1) member of the senate to be appointed by the speaker of the senate;

(8) One (1) member of the house of representatives to be appointed by the speaker of the house of representatives; and

(9) Six (6) representatives from nonprofit organizations whose focus is food insecurity and childhood hunger, two (2) of whom must be appointed by the speaker of the senate, two (2) of whom must be appointed by the speaker of the house of representatives, and two (2) of whom must be appointed by the governor.

(d)

(1) Members of the task force serve without compensation for their services, and must meet electronically pursuant to § 8-44-108.

(2) Vacancies among the members of the task force must be filled in the same manner as in the original selection of members.

(3) The speaker of the senate and the speaker of the house of representatives shall confer in making appointments to ensure that members of the task force are inclusive and reflect the diversity of people of this state.

(4) The commissioner of human services shall serve as chair, and shall call the first meeting of the task force no later than July 1, 2025, at which time the members shall elect a first vice chair and second vice chair from among the private sector members.

(5) The task force shall meet at least every three (3) months. The chair may call special meetings when necessary for the transaction of business and shall notify each member of the task force of any special meeting at least five (5) days before the time fixed for the special meeting. A majority of the members of the task force may petition the chair to call a special meeting, in which case the chair shall call a special meeting.

(e) The task force must agree upon any findings and recommendations by a majority vote of the total membership of the task force. A majority of the members of the task force constitutes a quorum for the purpose of meeting and conducting business.

(f) The task force is administratively attached to the department of human services. All appropriate agencies of state government shall provide reasonable assistance to the task force upon request of the chair of the task force.

(g) The task force has the responsibility to:

(1) Develop a strategic action plan for increasing the availability of high-quality, affordable, and accessible nutrition in this state;

(2) Develop policy recommendations to ensure the provision of programs and services that will enable children to be self-sufficient, healthy, and productive citizens;

(3) Develop policy recommendations to address administrative challenges with EBT cards, including, but not limited to, theft and fraud; and

(4) Identify resources across state government departments and community partners that could be streamlined, coordinated, and more effectively utilized to address childhood hunger challenges.

(h) The task force shall submit a report of its findings and recommendations to the general assembly no later than July 1, 2026. The report must include:

(1) Findings and conclusions about childhood hunger needs in this state;

(2) The full strategic action plan, with an executive summary, that includes the types of resources available through community partners and the number of children served; and

(3) Recommendations for legislation deemed necessary by the task force to implement the strategic plan.

(i) The task force ceases to exist upon completion of the task force's report and recommendations.

SECTION 3. For the purpose of making appointments, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it.